State vs Rakesh Arora @ Tipu And Ors on 9 February, 2026

IN THE COURT OF SHRI ANUJ AGRAWAL
ADDITIONAL SESSIONS JUDGE-5, SOUTH EAST DISTRICT,
SAKET COURTS, NEW DELHI

SC No. 19 of 2021

DLSE010001882021

STATE

Vs.

1. RAKESH ARORA @ TIPU
S/o Sh. Bhupender Arora
R/o 281 Tehkhand Village, Churiya Mohalla,
OIA-II, Delhi.

2. DHEERAJ ARORA @ GOLDY
S/o Mr. Bhupender Arora
R/o D-325, Pul Prahladpur,
New Delhi.

FIR No.404/2020
PS: Okhla Industrial Area
U/s: 302/34 IPC

Instituted on : 24.11.2020
Committed on : 21.12.2020
Reserved on : Not reserved
Decided on : 09.02.2026

JUDGMENT

1. The accused persons in the instant case have been sent to face trial with the allegations that on 27.08.2020 at about 23.15 PM, at Honda Curtsey Tiraaha, Maa Aanandmai Marg, Okhla Phase-I, New Delhi within jurisdiction of PS Okhla Industrial Area, they both, in furtherance of their common intention, committed murder of victim Krishna Meena.

2. Gist of Prosecution Case : The prosecution case, in brief, is that in the intervening night of 27/28.08.2020, DD No. 114A was received regarding an injured man lying in a pool of blood near

Honda Chowk, Maa Anand Mai Marg, allegedly assaulted by 3-4 persons. On receipt of the said DD entry, SI Bharat reached the spot and noticed bloodstains on the road and a parked truck bearing registration No. HR-47D-0366. The injured had already been removed to ESI Hospital, where he was found admitted and declared unfit for statement. Due to his serious condition, he was referred to Safdarjung Hospital. The injured was identified as Krishan Kumar Meena, a truck driver from Jaipur, Rajasthan.

2.1 During further inquiry, SI Bharat met the wife of the injured, Pappi Devi, who stated that she had come to Delhi from Rajasthan along with her 7-year-old son Rahul to meet her husband. On 27.08.2020 at about 11:00 PM, while near Okhla, their son went missing. While searching for the child near a tempo stand, the injured approached two young persons seeking help. An argument ensued when the said persons responded rudely, whereupon one of them caught hold of the injured and the other assaulted him on the head with a metal rod brought from a nearby SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 2 of 33 tempo, causing him to collapse unconscious. Thereafter, the police arrived and the injured was taken to hospital.

2.2 Subsequently, the injured Krishan Kumar Meena succumbed to his injuries during treatment at Safdarjung Hospital, and his post- mortem examination was got conducted in due course. During investigation, the crime scene was inspected by the police officials and samples were lifted from the spot in accordance with law. During the course of investigation, the accused persons were identified by an independent witness, namely Jai Prakash, a security guard posted at a Honda Showroom near the place of incident, who stated that he had seen both the accused fleeing from the spot immediately after the occurrence. The accused persons were thereafter arrested, and during investigation, they allegedly confessed their involvement in the commission of the present offence. The weapon of offence i.e. blood stained iron rod was recovered at instance of both accused which was seized by Investigating Officer vide seizure memo.

3. The investigation culminated in the filing of a final report/ chargesheet under section 173 CrPC against both accused.

CHARGE

4. On completion of necessary formalities, matter was committed to the Court of Sessions. To a charge under section 302/34 IPC framed on 10.12.2021, the accused persons pleaded not guilty and claimed trial.

SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 3 of 33 PROSECUTION EVIDENCE:

5. In support of its allegations, prosecution produced 29 witnesses. A summary of the witnesses produced and their connection with the incident is as follows :

Witness No.	Witness Name	Purpose

PW1 Dr. Ravi Prajapati, Proved the MLC of deceased

CMO ESIC Hospital, prepared by Dr. Kashif Mansoor, Okhla which is Ex. PW1/B. PW2 Dr. Avinash Sharma, Proved the death summary SR DNB (Anaesthesia) Ex.PW2/A of the deceased, prepared Safdarjung Hospital by him.

PW3 HC Roop Chand Duty Officer who recorded DD No. 114A Ex. PW3/A dt. 27.08.2020.

PW4 ASI Murari Lal Duty Officer, who recorded the FIR and also recorded DD No. 9 dt.

28.08.2020 regarding admission and death of Kishan Meena from Safdarjung hospital. He proved copy of FIR as Ex. PW4/A and said DD as Ex. PW4/D. PW5 Mr. Nafess Ahmed Eyewitness to the incident.

PW6 Sh. Brahm Singh Prove his statement regarding tenancy of Ranvir Mavi at house No. 177, Mavil Mohalla, Teh Khand, Okhla Phase-I. PW7 ASI Subh Ram, I/C He met with the missing boy Rahul, PCR Van Kite-21A. son of deceased and made PCR call.

He handed over the custody of said boy to his mother Smt. Pappi Devi.

SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 4 of 33 PW8 Smt. Pappi Devi. She is the wife of deceased and the complainant. She is also the eyewitness of the incident.

PW9 Jai Prakash Tiwari The material witness and the concerned Security Guard.

PW10 Ranvir Mavi He had given the room on rent to Rishi Arora, who is the brother of both the accused persons. He had produced the copy of Aadhar and copy of electricity bill in the name of Jaipal Singh, who is the owner of the property.

PW11 Insp. Subhash Chand He filed the application Ex.PW11/A for postmortem of the deceased and is the witness of proceedings of postmortem of deceased.

PW12 ACP Mukesh Kumar He prepared scaled site plan of the Jain, Draughtsman. spot Ex.PW12/A. PW13 SI Bharat Singh He is first Investigating Officer. He is witness of lifting and seizure of exhibits from spot, preparation of site plan, arrest of accused persons, seizure of clothes of accused persons and recovery of iron rod.

PW14 Mr. Dhan Prakash, He proved attendance of Mr. Jai employer of Honda Prakash Tiwari as Security Guard in showroom. Courtesy Honda, Okhla on 26.08.2020, 27.08.2020 and 29.08.2020.

PW15 SI Hanu Ram, Finger He inspected the spot and prepared Print Proficient, Crime scene of crime report Ex. PW15/A. Team SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 5 of 33 PW16 HC Shankar Lal He is the witness of arrest of accused persons and recovery of clothes and weapon of offence i.e. iron rod at the instance of accused persons.

PW17 Ct. Rajeev He supplied copy of FIR to the DCP and the Ilaka Magistrate at their residence.

PW18 ASI Rakesh Kumar Rukka was sent through him and he is also the witness to the lifting of exhibits from the spot and conducting of postmortem of the deceased.

PW19 HC Baljit Kumar, He had taken 12 photographs Mark Photographer, Mobile A1 to A12 of the spot. Crime Team PW20 ASI Narbir Singh He is the Duty Officer, who recorded the GD No. 0074A Ex. PW20/A. PW21 ASI Suresh Chand He had transported the victim in Emergency Response Vehicle to ESI Hospital.

PW22 HC Ramji Lal He deposited the exhibits to FSL, Rohini against acknowledgment.

PW23 ASI Jafruddin He atteneded the PCR call regarding information of son of the deceased.

PW24 Shri Shailender Yadav, He examined blood sample of victim Senior Scientific and found that no ethyl and methyl Officer, FSL, Rohini, alcohol was detected in the said blood sample and proved his report Ex. PW24/A. SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 6 of 33 PW25 Dr. Sarabjit Singh, The expert witness.

	Senior Scientific Officer (Biology), FSL, Rohini	
PW26	Inspector Ajay Katewa	He filed the FSL reports Ex.PW24/A and Ex.PW25/A by way of supplementary charge sheet.
PW27	Dr. Alif Muzaffar Sofi	He conducted the postmortem of the deceased and proved his report Ex. PW27/A.
PW28	ASI Mahesh Chand	He is the MHC(M) and had deposited the pullandas in the Malkhana and thereafter handed over to Ct. Ramji Lal for depositing the same to FSL against acknowledgment.
PW29	ACP Rakesh Rawal	He is the Investigating Officer.

6. MATERIAL EVIDENCE ON RECORD: The testimony of material witnesses is being discussed hereinunder, whereas brief of remaining testimonies has already been given in the preceding paragraph.

7. PW5 Nafess Ahmed is one of the eyewitnesses of the incident in question and he deposed as under:

> "In the year 2020 I was working as delivery boy with Swiggy. In the night of 28.08.2020 I was going with one of my friend Zishan on my motorcycle from Kalkaji to his house at Lal Kua when I reached at about 11.30 PM at Honda Chowk where I saw that two persons were beating a person who was bleeding from his head. We stopped there. The assailants fled away and I could not see their face. I along with my friend with the help of some other public persons took SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 7 of 33 the injured and kept in a police vehicle which was passing by. I had called at 100 number and 102 number by my mobile no. 7217673543 and intimated about the incident. Later on IO recorded my statement to the above said effect. I can not identify the assailants.
>
> XXXX by Sh. G.B.Singh , counsel for both the accused persons.
>
> I had visited PS OIA once but I did not remember the exact date but it was in November 2020. Thereafter I never visited the PS regarding present case. It is wrong to suggest that police did not record my statement. It is wrong to suggest that I am not deposing falsely."

(emphasis supplied)

8. PW8 Smt. Pappi Devi is the wife of deceased, who was present along- with him on the fateful day. She deposed as under:

> "I was residing in a rented room in the area of Shahpura alongwith my husband and son aged about 7 years. I am housewife. My husband was driver on a truck. On the day of murder of my husband, I was pregnant of about 8 months. My maternal home was Village Barolia, Barabanki, UP. I wanted to go at my maternal home. I and my son Rahul came by bus and reached at Dhaula Kuan at about 7 p.m. I do not remember the date but it was month of August. I do not remember the year. I made a call to my husband and asked him to get me seated in the train as I want to go to my maternal village. My husband had tried for Tatkal ticket in the train but he could not arrange. It was already late. I made a call to my husband on which he came at Dhaula Kuan in an Auto. Thereafter, I alongwith my husband and son reached in the auto at Shankar company at Okhla.
>
> I am illiterate. From company, my husband asked me to sit in the truck which he was driving. I alongwith my son sat in the truck on the front side. After that my husband gone to bring meal for us. There was a water bottle in the truck and my son had taken it and alighted from the truck and gone to bring water. My husband returned before the truck alongwith meal. He asked me about Rahul on which I told him that he had gone after him to bring water bottle. My husband told that Rahul had not come after

him. Thereafter, I alighted from the truck and I alongwith my husband started to search Rahul as he was missing at that time. Despite our search, we could not find Rahul. I started weeping. Thereafter, I asked my husband to sit in the truck and to move ahead for the search of Rahul. We had covered a distance of about half an hour for the company on the truck. Due to missing of SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 8 of 33 Rahul, I started fainting from time to time. My husband alighted from the truck after locking me in the truck. At the spot where my husband alighted some tempo was found parked. My husband had taken a rod from the truck while he had alighted. When I asked as to why he was taking rod with him on which, my husband asked me to sit in the truck. Someone had made call to police. My husband was injured as I came to know that someone had hit him with rod. I had not seen as to who had hit my husband with rod.

Police took my husband to Safdarjung hospital. Police when reached before the truck I shouted from inside on which the gate of truck was opened and I came outside. I started weeping. I told the police official that my son Rahul was missing. After sometime, some police official came at the said spot with my son Rahul and handed over to me. I made inquiry from the tea stall seller about the police station nearby the spot on which he told me about police station of Okhla.

I reached at PS alongwith my son Rahul. I inquired from the police official in the PS and they told me that my husband was under

treatment at Safdarjung hospital. It was dark night hours when the incident took place and I had not seen anyone who had hit my husband at the time of incident. Police official had made some inquiry from me and I had made thumb impression on the said document. The police official had not read over the contents of said document to me. The statement Ex.PW8/A which bears my thumb impression at point A. I had not accompanied the spot of incident with the police official to show the spot of incident. After postmortem, dead body of my husband was handed over to me and relative of my husband. The handing over memo of dead body is Ex.PW8/B which bears my thumb impression at point A. I had not stated to the police about the details and description of the assailant who had hit rod on my husband. The arrest memo of accused Rakesh Arora Ex.PW8/C and arrest memo of accused Dheeraj Arora Ex.PW8/D are shown to the witness who could not identify her thumb impression at point A. I do not know whether my statements were recorded by the police. I had not joined the investigation at PS to identify the accused persons who had caused injury to my husband at the time of incident.

At this stage, Ld. APP seeks permission to cross-examine the witness as she is resiling from her earlier statement. Heard. Allowed.

XXXXX by Ld. APP for State.

At this stage, statement Ex.PW8/A is read over to the SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 9 of 33 witness. It is wrong to suggest that I had stated to the police that on 27.08.2020 at about 2 p.m., I alongwith my son Rahul had come at Dhaula Kuan by bus from my house. Confronted from portion A to A where it is so recorded. It is wrong to suggest that I had stated to the police that I alongwith my husband and son were going in the truck of my husband to take bus for maternal house. Confronted from portion B to B where it is so recorded. It is wrong to suggest that I had stated to the police that while on the way to Okhla at about 11:15 p.m., I alongwith my son felt thirsty and we alighted from the truck to drink water meanwhile, my son lost. Confronted from portion C to C where it is so recorded.

It is wrong to suggest that I had stated to the police that while searching Rahul when I alongwith my husband reached on a chowk near Honda showroom where we found some tempos were parked and two boys were standing near the said tempo. Confronted from portion D to D where it is so recorded.

It is correct that my husband had alighted from the truck and asked two boys standing over there but I had not seen them from whom my husband inquired about Rahul.

It is wrong to suggest that I had stated to the police that when my husband asked from those two boys out of which one boy was having long hair and tall in height asked my husband to move from there. Confronted from portion E to E where it is so recorded. It is wrong to suggest that due to said reason some quarrel started taking place between my husband and said boy, meanwhile, the said boy caught hold my husband another boy of short height who was accompanying with the said boy icked a rod from a nearby tempo and hit on the head of my husband from backside and caused injury due to which my husband fell on the road and blood started oozing from the head and my husband became unconscious. Confronted from portion F to F where it is so recorded.

It is wrong to suggest that in my statement I had stated to the police that when I started shouting both the boys fled away from the spot and on my shouting some person gathered at the spot. Confronted from portion G to G where it is so recorded.

It is wrong to suggest that in my statement I had stated to the police that the short height boy was wearing blue colour jeans and brown colour shirt who had hit my husband with rod. Confronted from portion H to H where it is so recorded.

It is wrong to suggest that in my statement I had stated to the SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 10 of 33 police that the long hair and tall height boy who had caught hold my husband was wearing black pant and white and black shirt. Confronted from portion I to I where it is so recorded.

It is wrong to suggest that in my statement I had stated to the police that I can identify both the boys if produced before me who had attacked my husband with the intention to kill him. Confronted from

portion J to J where it is so recorded.

At this stage, supplementary statement recorded u/s 161 Cr.P.C. Mark-X is read over the witness who denies having so made to the police.

It is wrong to suggest that I had accompanied the police official for the spot of incident and site plan of the spot of incident was prepared at my instance.

It is wrong to suggest that I had gone to the police station Okhla where two boys were found present in the PS and I had identified one of the boy having long hair and tall height as Dheeeraj Arora, who had caught hold my husband at the time of incident. It is wrong to suggest that I had identified another boy of short height as Rakesh Arora who had hit rod on the head of my husband at the time of incident. I came to know about the name of said accused persons from police official. It is wrong to suggest that both the accused persons were arrested vide arrest memo Ex.PW8/C and Ex.PW8/D and I put my thumb impression upon it.

At this stage, witness is shown the accused persons namely Dheeraj Arora and Rakesh Arora but she could not identify them. It is wrong to suggest that I am intentionally not deposing the true facts of the case. It is wrong to suggest that I am intentionally not identifying the accused persons present in Court today who had caught hold my husband and hit on the head of my husband with a rod at the time of incident and trying to save him as I have been won over by their family members.

XXXXX by Sh. G. B. Singh, counsel for both accused.

It is correct that police had obtained my thumb impression on some papers which were not read over to me."

(emphasis supplied)

9. PW9 Jai Prakash Tiwari is the Security Guard and the third star SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 11 of 33 witness of prosecution who deposed as under:

> "I am 10th passed. I can speak and read Hindi language only. I am residing the above said address with my family. I was working as Security Guard at Honda Showroom at D-196, Okhla Phase-I. I don not remember the date of the month, however, it was summer of year 2020 when I was on duty from 8 p.m. to 8 a.m. I was sitting outside the gate of my Hero Honda showroom. I had heard some noise on which I reached at a distance of 200 meters from the Honda showroom and saw that one person was lying in the PCR in injured condition. I had not seen anyone running away from the said spot. I was forced by one of the constable on which I accompanied him to the police station. I met with the one of the senior officer who inquired from me and I stated him that I had not seen anyone. No statement was recorded by the police.

At this stage, witness is asked to identify the accused persons present in Court today on which he could not identify them.

At this stage, statement Mark-Y is shown to the witness who denies having so made to the police. It is wrong to suggest that on 27/28.08.2020, I was present at outside the Honda showroom and was walking and I saw that one lady was shouting from the side of chowk on the road. It is wrong to suggest that I saw that two boys were found running fastly towards Tehkhand village and the lady who was weeping was pointing out towards those boys. It is wrong to suggest that when I saw those boys, I identified him as Tipu @ Rajesh Arora and his brother Dheeraj @ Goldy to whom I know prior to the said date. It is wrong to suggest that Tipu was having danda in his hand who used to ply gramin sewa vehicle at Maa Anand Mai Marg. It is wrong to suggest that Goldy used to collect money from gramin sewa vehicle as he had given certain gramin sewa vehicle on contract. It is wrong to suggest that I had seen both the accused persons outside my company office on the road in the gramin sewa vehicle and with other drivers of gramin sewa vehicle with whom they had used to have conversation and exchange of money. It is wrong to suggest that I know both the accused persons prior to the date of incident. It is wrong to suggest that I came to know later on that accused Tipu @ Rakesh Arora and Dheeraj Arora @ Goldy had quarreled with husband of said lady and caused injuries with danda. It is wrong to suggest that I am intentionally not deposing the true facts of the case. It is wrong to suggest that I am intentionally not identifying the accused Rakesh Arora @ Tipu and accused Dheeraj Arora @ Goldy and trying to save them as I have been won over by the family members of accused SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 12 of 33 persons."

(emphasis supplied)

10. PW-10 Ranbir Mavi deposed that he is a resident of House No. 177, Mavi Mohalla, Village Tekhand, Okhla Industrial Area, Delhi, and that he used to let out rooms on rent at the said property. He stated that one room had been let out to Rishi Arora. He further deposed that in the year 2020, police officials had come to the rented room of Rishi Arora and had taken two brothers of Rishi Arora, whom he could identify by face. In Court, PW-10 identified both accused persons present as the brothers of Rishi Arora.

10.1 PW-10 further stated that he had visited the police station subsequently and had signed some documents. He identified his signatures on the seizure memo of blood-stained iron rod Ex. PW10/A (bearing his signature at point 'A') and also identified his signature on the site plan Ex. PW10/B. He further deposed that on 18.11.2020, he handed over copies of Aadhaar card and electricity bill of the said property to the police, which were seized vide seizure memo Ex. PW10/C. The copies of Aadhaar card and electricity bill were initially marked as Mark A and Mark B. 10.2 During his further examination-in-chief on 17.10.2022, PW-10 produced the original Aadhaar card, which was exhibited as Ex. PW10/D (OSR). He also produced original electricity bills of October 2019 and October 2022 in the name of late Jaipal Singh (owner of the property), which were exhibited as Ex.

PW10/E and Ex. PW10/F (OSR).

10.3 On being shown the weapon of offence i.e. iron rod, the SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 13 of 33 witness stated that the same was not recovered in his presence at instance of accused persons. On being cross-examined by Ld. APP, PW-10 denied that he was present when the accused persons led the police to the rented room or that the iron rod was recovered from the almirah of the said room at the instance of the accused. He denied that the accused had confessed to using the iron rod in assaulting the victim. He also denied that the iron rod was sealed in his presence. He denied the suggestion that he was intentionally suppressing the truth or had been won over by the accused.

10.4 During cross-examination by defence, PW-10 stated that he did not remember the exact date and time when police called him to the police station. He admitted that the documents Ex. PW10/A, Ex. PW10/B and Ex. PW10/C were not read over to him and that his signatures were obtained at the police station. He further admitted that the iron rod was not recovered in his presence, nor was the site plan of recovery prepared in his presence. He admitted that he knew the accused persons as they were residing in his locality.

11. PW-13 SI Bharat Singh deposed that in the intervening night of 27/28.08.2020, while posted at PS Okhla Industrial Area, he was on emergency duty. On receipt of DD No. 114A dated 27.08.2020 at about 11:40 p.m., he along with PSI Vijay reached Honda Courtesy Tiraha, Maa- Anand-Mayee Marg, Okhla Industrial Area Phase-I, where blood was found lying on the road and one truck bearing No. HR-47D-0366 was parked nearby. At the spot, Smt. Puppi Devi was found present in a disturbed condition. He attempted to contact the PCR caller but could not reach him. He came to know that the injured had already been shifted to SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 14 of 33 ESI Hospital, Okhla.

11.1 PW-13 stated that he reached ESI Hospital, where he found that the injured had been admitted as unknown vide MLC No. 145/20 and was declared unfit for statement. The injured was later referred to Safdarjung Hospital, where his identity was revealed as Krishan Kumar Meena, who subsequently succumbed to his injuries. PW-13 thereafter returned to the spot and recorded the statement of Smt. Puppi Devi, prepared the rukka, and sent it for registration of FIR through HC Rakesh. The rukka was proved as Ex.PW13/A. 11.2 He deposed that Inspector Rakesh Rawat took over further investigation and prepared the site plan at the instance of the complainant. From the spot, blood-stained road concrete and earth control were lifted, sealed with seal of RR, and seized vide seizure memo Ex.PW13/B. 11.3 PW-13 further deposed that on 28.08.2020, he joined the investigation with Inspector Rakesh Rawat and HC Rakesh and went to House No. 177, Mavi Mohalla, Tekhand Village, where both accused Dheeraj Arora and Rakesh Arora were found present and were apprehended, that both accused were correctly identified by Smt. Puppi Devi at the police station.

11.4 He further deposed that accused Dheeraj Arora was arrested vide arrest memo Ex.PW8/D, his personal search was conducted vide Ex.PW13/C, and his disclosure statement was recorded vide Ex.PW13/D, that accused Rakesh Arora was arrested vide arrest memo Ex.PW8/C, his SC No.

19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 15 of 33 personal search was conducted vide Ex.PW13/E, and his disclosure statement was recorded vide Ex.PW13/F. 11.5 PW-13 further deposed that the wearing clothes of both accused were seized, sealed, and taken into possession vide seizure memo Ex.PW13/G and Ex.PW13/H. He further deposed that at the instance of accused persons, the police was led to the place of incident and thereafter to House No. 177, from where one blood-stained iron rod was recovered from the top of a wooden almirah. The iron rod was sealed and seized vide seizure memo Ex.PW10/A, and the site plan of recovery was prepared vide Ex.PW10/B. The iron rod was later produced in Court and identified as Ex.P-1.

11.6 PW-13 identified the case property as under:

(i) Blood-stained gauze cloth - Ex.P-2 and cloth pullanda Ex.P-3

(ii) Blood-stained concrete pieces - Ex.P-4 and pullanda Ex.P-5

(iii) Earth control - Ex.P-6 and pullanda Ex.P-7

(iv) Blood-stained clothes of accused Dheeraj Arora - Ex.P-8 (colly) and pullanda Ex.P-9

(v) Blood-stained clothes of accused Rakesh Arora - Ex.P-10 (colly) and pullanda Ex.P-11

12. PW-29 ACP Rakesh Rawal deposed that on 27.08.2020, he was posted as Inspector Investigation at PS Okhla Industrial Area. In the intervening night of 27/28.08.2020, pursuant to DD No. 114A, FIR was registered on the basis of the statement of Pappi Devi, and after registration of the FIR, the investigation was marked to him. He stated that SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 16 of 33 he was present at the spot when he received the copy of FIR and original rukka through HC Rakesh.

12.1 PW-29 deposed that he made inquiries from the complainant and, at her instance, prepared the site plan Ex. PW29/P1, bearing his signature. He further stated that he lifted exhibits from the spot, namely blood-stained concrete and blood in gauze, sealed them separately with the seal of RR, and seized the same vide seizure memo Ex. PW13/B. He clarified that the crime team had already inspected the spot prior to his arrival.

12.2 PW-29 further deposed that he examined Jai Prakash Tiwari, a security guard posted at Honda Showroom, Okhla Phase-I, and recorded his statement under Section 164 Cr.P.C. He stated that on the basis of information provided by Jai Prakash Tiwari, he along with SI Bharat and Ct. Shankar Lal searched for the accused persons and reached Tekhand village, where both accused were found in their rented room. Upon inquiry, their names were revealed as Rakesh Arora @ Tipu and Dheeraj Arora @ Goldi. Both accused were brought to the police station, where the complainant identified them as the offenders.

12.3 PW-29 stated that he explained the grounds of arrest to the accused and arrested Rakesh Arora vide arrest memo Ex. PW8/C and Dheeraj Arora vide arrest memo Ex. PW8/D. He further conducted their personal search and prepared the memos Ex. PW13/C and Ex. PW13/E. He interrogated both accused and recorded their disclosure statements, namely Ex. PW13/F (Rakesh Arora) and Ex. PW13/D (Dheeraj Arora).

SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 17 of 33 12.4 PW-29 further deposed that both accused pointed out the place of occurrence, and the pointing-out memos Ex. PW13/I and Ex. PW13/J were prepared at their instance. Pursuant to their disclosure statements, a blood-stained iron rod (length 3.5 feet) was recovered from their rented room at Makaan No. 177, Tekhand village, from an almirah lying in the room. He sealed the iron rod with the seal of RR and seized it vide seizure memo Ex. PW10/A, and prepared the place of recovery map Ex. PW10/B. 12.5 PW-29 further stated that the wearing clothes of both accused, which were allegedly worn at the time of incident, were also seized, sealed with the seal of RR, and seized vide Ex. PW13/G (Rakesh Arora) and Ex. PW13/H (Dheeraj Arora). Thereafter, the case property was deposited in the malkhana.

12.6 PW-29 deposed that he collected documents relating to the ownership of the rented room from its owner Ranbir Mavi, including a copy of Aadhaar card and electricity bill, which were seized vide seizure memo Ex. PW10/C; the documents were exhibited as Ex. PW10/D and Mark B. He also collected PCR forms relating to PCR calls vide Event ID Nos. 1931008 and 1930873, exhibited as Ex. PW29/P2 and Ex. PW29/P3, and recorded the statement of the PCR caller. He further collected crime team photographs after they were developed.

12.7 PW-29 stated that since post-mortem could not be conducted earlier, he got the post-mortem examination conducted on 30.08.2020. After post-mortem, the dead body was handed over to the legal heirs vide receipt Ex. PW8/B. He also got the scaled site plan prepared and prepared SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 18 of 33 the death report Ex. PW11/C. He collected the post-mortem report and MLC of the deceased.

12.8 PW-29 identified both accused in Court and stated that he could identify the seized clothes and iron rod. He further deposed that the exhibits were sent to FSL, statements of witnesses were recorded, and after completion of investigation, he prepared and filed the charge-sheet. He also stated that the FSL report was later filed through supplementary charge-sheet.

12.9 During his cross-examination, PW-29 denied the suggestion that the investigation was conducted in a mechanical manner or that the accused were falsely implicated. He admitted that photographs of the accused were taken at the police station for press purposes after arrest. He denied that there were no bloodstains on the clothes of the accused at the time they were taken into possession and clarified that the accused were seen wearing the same clothes in the photographs on record. He denied recording the statement of any family member who brought alternate clothes for the accused and denied all suggestions of false implication or false deposition.

ARGUMENTS OF THE PROSECUTION

13. Learned Additional Public Prosecutor for the State has argued that the prosecution has successfully proved its case beyond all reasonable doubt on the basis of the material available on record. It is submitted that the weapon of offence as well as the clothes of both the accused, which SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 19 of 33 were found to be stained with the blood of the deceased, were recovered at their instance and as per the expert opinion Ex. PW25/A, the blood detected on the weapon of offence and on the clothes of the accused matches with the blood group of the deceased. It is contended that these incriminating circumstances form a complete chain and are sufficient to establish the guilt of the accused.

ARGUMENTS OF THE DEFENCE

14. Per contra, learned defence counsel has vehemently argued that the prosecution case is based on alleged eyewitness accounts, but none of the prosecution witnesses have supported the prosecution version. It is further argued that the prosecution has failed to prove the alleged recovery of the weapon of offence and the clothes of the accused, particularly in view of the fact that the independent witnesses have not supported the recovery proceedings. It is contended that the alleged recoveries and the presence of the victim's blood on the clothes of the accused are planted and fabricated pieces of evidence. On these grounds, learned defence counsel prays for the acquittal of the accused.

15. I have heard rival contentions and perused the record.

16. In a criminal trial, the onus remains on the prosecution to prove the guilt of accused beyond all reasonable doubts and benefit of doubt, if any, must necessarily go in favour of the accused. It is for the prosecution to travel the entire distance from may have to must have. If the prosecution appears to be improbable or lacks credibility the benefit of SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 20 of 33 doubt necessarily has to go to the accused.

17. In Sujit Biswas vs. State of Assam, (2013) 12 SCC 406, it was held that suspicion, however grave, cannot take the place of proof and the prosecution cannot afford to rest its case in the realm of "may be" true but has to upgrade it in the domain of "must be" true in order to steer clear of any possible surmise or conjecture.

18. Further, in Jose vs. Sub Inspector of Police, Koyilandy & Ors., (2016) 10 SCC 519, the Supreme Court held as under:-

> "In a criminal prosecution, the court has a duty to ensure that mere conjectures or suspicion do not take the place of legal proof and in a situation where a reasonable doubt is entertained in the backdrop of the evidence available, to prevent miscarriage of justice, benefit of doubt is to be extended to the accused. Such a doubt essentially has to be reasonable and not imaginary, fanciful, intangible or non- existent but as entertainable by an impartial, prudent and analytical mind, judged on the touch stone of reason and common sense. It is also a primary postulation in criminal jurisprudence that if two views are possible on the evidence available, one pointing to

> the guilt of the accused and the other to his innocence, the one favourable to the accused ought to be adopted."

19. In the present case, the testimony of PW-5 Nafess Ahmed does lend limited corroboration to the prosecution only to the extent that an incident of assault had taken place at the relevant time and place. PW-5 deposed that he saw two persons assaulting the victim, who was bleeding from the head, and that the assailants fled from the spot. However, he categorically stated that he could not see the faces of the assailants and, therefore, was unable to identify them. His testimony, thus, merely SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 21 of 33 establishes the occurrence of a violent incident but fails to advance the prosecution case on the crucial issue of identity of the assailants.

20. It is settled law that where the identity of the accused is in dispute, mere proof of an assault or homicidal death is insufficient to sustain a conviction. Since PW-5 does not connect the accused with the offence, the prosecution case necessarily hinges upon the testimonies of PW-8 Pappi Devi (wife of the deceased) and PW-9 Jai Prakash Tiwari, who were projected as material witnesses on the question of identity.

21. PW-8, who was admittedly present in the vicinity at the relevant time, completely failed to support the prosecution version in Court. She categorically deposed that she did not witness the assault on her husband and did not see anyone hitting him with a rod. She further denied having given any description of the assailants to the police and disowned her alleged role in identifying the accused at the police station. Despite being confronted with her previous statement and being extensively cross- examined by the learned Additional Public Prosecutor, no material admission could be elicited from her to connect the accused with the crime.

22. Significantly, PW-8 also denied that the arrest memos of the accused bore her thumb impressions and stated that her thumb impressions were obtained on papers which were not read over to her. Her testimony, therefore, not only fails to identify the accused but also casts a serious SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 22 of 33 doubt on the reliability of the investigation insofar as alleged identification and arrest proceedings are concerned.

23. Similarly, PW-9 Jai Prakash Tiwari, the security guard posted near the place of occurrence and claimed by the prosecution to be an independent witness who had seen the accused fleeing from the spot, also resiled completely from the prosecution case. He categorically stated that he did not see anyone running away from the spot and that he had not seen the accused at the relevant time. He also failed to identify the accused in Court and denied having made any inculpatory statement to the police during investigation.

24. Thus, both PW-8 and PW-9, the only witnesses relied upon by the prosecution to establish the identity of the accused, have turned hostile and have not supported the prosecution on any material aspect. In the absence of their support, the prosecution version regarding the participation of the accused in the alleged offence remains wholly unsubstantiated. It is trite that conviction cannot be based on the contents of statements recorded during investigation when the makers of those

statements do not affirm them in Court.

25. The prosecution has next relied upon the recovery of the alleged weapon of offence, i.e., an iron rod, and the recovery of clothes allegedly stained with the blood of the deceased. However, the credibility of recovery of weapon of offence is gravely undermined by the testimony SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 23 of 33 of PW-10 Ranbir Mavi, the sole independent witness cited to support the said recovery. PW-10 categorically denied that any recovery was effected in his presence at the instance of the accused and stated that the iron rod was neither recovered nor sealed before him.

26. Even though PW-10 admitted his signatures on certain documents, he clearly stated that those documents were not read over to him and that his signatures were obtained at the police station. His testimony, therefore, does not inspire confidence and renders the alleged recovery highly doubtful. In such circumstances, reliance solely on the testimonies of police witnesses, without independent corroboration, would be unsafe, particularly when the recovery is the principal incriminating circumstance relied upon by the prosecution.

27. Moreover, even assuming arguendo that the recoveries were effected as alleged and that the forensic reports indicate the presence of the victim's blood on the weapon and clothes, such circumstances by themselves cannot establish guilt unless the prosecution first proves, by reliable evidence, that the accused were the perpetrators of the assault. Recovery evidence cannot fill the foundational gap left by the failure of eyewitnesses to identify the accused, especially in a case resting substantially on circumstantial evidence.

28. In the totality of circumstances, while the prosecution has successfully established that the death of the victim was homicidal, it has SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 24 of 33 miserably failed to prove beyond reasonable doubt that the accused were responsible for causing such death. The testimonies of PW-5, PW-8, PW-9 and PW-10, when read conjointly, do not form a complete or unbroken chain pointing unerringly towards the guilt of the accused. The evidence on record gives rise to serious and reasonable doubts, and the prosecution case remains in the realm of suspicion rather than proof. Consequently, the accused are entitled to the benefit of doubt.

29. In Sarwan Sigh Rattan Singh Vs. State of Punjab, AIR 1957 SC 637, Apex court observed (Para12):-

> "Considered as a whole the prosecution story may be true; but between 'may be true' and 'must be true' there is inevitably a long distance to travel and the whole of this distance must be covered by legal, reliable and unimpeachable evidence (before an accused can be convicted."

30. In view of aforesaid discussion, I have no hesitation in holding that prosecution has miserably failed to prove guilt of accused beyond all reasonable doubts. Therefore, both the accused deserve to be acquitted in the instant case.

31. Accordingly, both the accused namely Rakesh Arora @ Tipu and Dheeraj Arora @ Goldy stand acquitted in the instant case of all the charges levelled against them. ANUJ AGRAWAL Announced in the open (ANUJ AGRAWAL) ANUJ AGRAWAL Date: 2026.02.09 Court on 09 February, 2026 Additional Sessions Judge-03, 16:12:18 +0530 South East, Saket Courts, New Delhi SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 25 of 33 Appendix Chart for witnesses examined:

Prosecution Witness No.	Name of Witness	Description
PW1	Dr. Ravi Prajapati,	Proved the MLC of deceased

CMO ESIC Hospital, prepared by Dr. Kashif Mansoor, Okhla which is Ex. PW1/B. PW2 Dr. Avinash Sharma, Proved the death summary SR DNB Ex.PW2/A of the deceased, (Anaesthesia) prepared by him.

Safdarjung Hospital PW3 HC Roop Chand Duty Officer who recorded DD No. 114A Ex. PW3/A dt. 27.08.2020.

PW4 ASI Murari Lal Duty Officer, who recorded the FIR and also recorded DD No. 9 dt.

28.08.2020 regarding admission and death of Kishan Meena from Safdarjung hospital. He proved copy of FIR as Ex. PW4/A and said DD as Ex. PW4/D. PW5 Mr. Nafess Ahmed Eyewitness to the incident.

PW6 Sh. Brahm Singh Prove his statement regarding tenancy of Ranvir Mavi at house No. 177, Mavil Mohalla, Teh Khand, Okhla Phase-I. His testimony is not relevant for present trial.

PW7 ASI Subh Ram, I/C He met with the missing boy PCR Van Kite-21A. Rahul, son of deceased and made PCR call. He handed over the custody of said boy to his mother Smt. Pappi Devi.

PW8 Smt. Pappi Devi. She is the wife of deceased and the complainant. She is also the eyewitness of the incident.

SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 26 of 33 PW9 Jai Prakash Tiwari The material witness and the concerned Security Guard.

PW10 Ranvir Mavi He had given the room on rent to Rishi Arora, who is the brother of both the accused persons. He had produced the copy of Aadhar and copy of electricity bill in the name of Jaipal Singh, who is the owner of the property.

PW11 Insp. Subhash Chand He filed the application Ex.PW11/A for postmortem of the deceased and is the witness of proceedings of postmortem of deceased.

PW12 ACP Mukesh Kumar He prepared scaled site plan of the Jain, Draughtsman. spot Ex.PW12/A. PW13 SI Bharat Singh He is first Investigating Officer. He is witness of lifting and seizure of exhibits from spot, preparation of site plan, arrest of accused persons, seizure of clothes of accused persons and recovery of iron rod.

PW14 Mr. Dhan Prakash, He proved attendance of Mr. Jai employer of Honda Prakash Tiwari as Security Guard showroom. in Courtesy Honda, Okhla on 26.08.2020, 27.08.2020 and 29.08.2020.

PW15 SI Hanu Ram, Finger He inspected the spot and prepared Print Proficient, scene of crime report Ex. PW15/A. Crime Team PW16 HC Shankar Lal He is the witness of arrest of accused persons and recovery of clothes and weapon of offence i.e. iron rod at the instance of accused persons.

PW17 Ct. Rajeev He supplied copy of FIR to the DCP and the Ilaka Magistrate at their residence.

SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 27 of 33 PW18 ASI Rakesh Kumar Rukka was sent through him and he is also the witness to the lifting of exhibits from the spot and conducting of postmortem of the deceased.

PW19 HC Baljit Kumar, He had taken 12 photographs Mark Photographer, Mobile A1 to A12 of the spot. Crime Team PW20 ASI Narbir Singh He is the Duty Officer, who recorded the GD No. 0074A Ex.

PW20/A. PW21 ASI Suresh Chand He had transported the victim in Emergency Response Vehicle to ESI Hospital.

PW22 HC Ramji Lal He deposited the exhibits to FSL, Rohini against acknowledgment.

PW23 ASI Jafruddin He attened the PCR call regarding information of son of the deceased.

PW24 Shri Shailender He examined blood sample of Yadav, Senior victim and found that no ethyl and Scientific Officer, methyl alcohol was detected in the FSL, Rohini, said blood sample and proved his report Ex. PW24/A. PW25 Dr. Sarabjit Singh, The expert witness.

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Senior     Scientific
                              Officer   (Biology),
                              FSL, Rohini
          PW26                Inspector        Ajay He filed the FSL reports
                              Katewa                Ex.PW24/A and Ex.PW25/A by
                                                    way of supplementary charge
                                                    sheet.
          PW27                Dr. Alif    Muzaffar He conducted the postmortem of
                              Sofi                 the deceased and proved his report
                                                   Ex. PW27/A.

          PW28                ASI Mahesh Chand          He is the MHC(M) and had
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		deposited the pullandas in the Malkhana and thereafter handed over to Ct. Ramji Lal for depositing the same to FSL against acknowledgment.
PW29	ACP Rakesh Rawal	He is the Investigating Officer.

Chart of Exhibited Documents

Exhibit no.	Description of the Exhibit	Proved by/Attested by
1	Authority Letter - Ex.PW1/A	PW-1
2.	MLC no. 145/20 - Ex.PW1/B	PW-1
3.	Death summary - Ex.PW2/A	PW-2
4.	CPR Note Ex.PW2/B.	PW-2
5.	Covid-19 Check list - Ex.PW2/C	PW-2

6. Information form for transfer of dead PW-2 body to mortuary- PW2/D

7. Format of death report - Ex.PW2/E PW-2

8. DD No. 114A dt. 27.08.2020 - PW-3 Ex.PW3/A.

9. Copy of FIR-Ex.PW4/A PW-4

10. Endorsement on Rukka - Ex.PW4/B PW-4

11. Certificate u/s 65B of IEA - PW-4 Ex.PW4/C SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 29 of 33

12. DD No. 9A dt. 28.08.2020 PS OIA PW-4 Ex.PW4/D

13. Statement of complainant - PW-8 Ex.PW8/A

14. Handing over memo of dead body - PW-8 Ex.PW8/B

15. Arrest memo of accused Rakesh PW-8 Arora - Ex.PW8/C

16. Arrest memo of accused Dheeraj PW-8 Arora - Ex.PW8/D

17. Seizure memo of blood stain iron rod PW-10

-Ex. PW10/A

18. Site Plan - Ex.PW10/B PW-10

19. Aadhar card and copy of electricity PW10 bill in name ofJaipal Singh

-Ex.PW10/C

20. Copy of Aadhar card - Ex.PW10/D PW10

21. Electricity Bill 11.08.2019 to PW10 11.09.2019 - Ex.PW10/E and bill 27.08.2022 to 27.09.2022 Ex.PW10/F (OSR)

22. Request application for postmortem PW11 of deceased - Ex.PW11/A

23. Form 25.35 (1)(b) in respect of PW11 postmortem of of deceased -

Ex.PW11/B

24. Seizure memo of exhibits of deceased PW11

- Ex.PW11/C

25. Scaled Site plan - Ex.PW12/A PW12

26. Rukka - Ex.PW13/A PW13 SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 30 of 33

27. Seizure memo of blood, blood stained PW13 road concree and earth control from spot - Ex.PW13/B

28. Personal search memo of accused PW13 Dheeraj- Ex.PW13/C

29. Disclosure statement of accused PW13 Dheeraj - Ex.PW13/D

30. Personal search memo of accused PW13 Rakesh Ex.PW13/E

31. Disclosure statement of accused PW13 Rakesh Arora - Ex.PW13/F

32. Seizure memo of wearing clothes of PW13 accused Rakesh i.e. blue jeans and brown colour shirt - Ex.PW13/G

33. Seizure memo of wearing clothes of PW13 accused Dheraj Arora i.e. black pant and black & white colour shirt Ex.PW13/H

34. Pointing out memo of spot of incident PW13 of accused persons - Ex.PW13/I and ExPW13/J.

35. Scene of Crime Report - Ex.PW15/A PW15

36. Dead body identification statements PW18 of Prabhu Dayal, complainant and Kailash - Ex.PW18/A to Ex.PW18/C

37. GD No. 0074A Ex.PW-20/A PW20

38. Copy of RC No. 136/21/20 and PW22 137/21/20 - Ex.PW22/A & Ex.PW22/C

39. Copy of two acknowledgements of PW22 case acceptance from FSL Ex.PW22/B & Ex.PW22/D SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 31 of 33

40. Report of FSL Expert (Chemistry) PW24

-Ex.PW24/A

41. Report of FSL Expert (Biology) PW25

-Ex.PW25/A

42. Allelic Data Chart - Ex.PW25/B PW25

43. Postmoretem Report Ex.PW27/A PW27

44. Entry No. 3087 - Ex.PW28/P1 PW28

45. Entry No. 3090 - Ex.PW28/P2 PW28

46. Road Certificate 136/21/20 - PW28 Ex.PW22/A

47. Road Certificate 137/21/20 - PW28 Ex.PW22/C

48. Site plan Ex.PW29/P1 PW29

49. PCR forms Ex.PW29/P2 and PW29.

Ex.PW29/P3

Chart for Material Objects/Muddamals

Material Description of the Object Exhibit no.	Proved by/Attested by

1. Blood stained gauze cloth piece. - PW-13 Ex. P3.

2. Blood stained concrete pieces lifed PW-13 from scene of crime - Ex.P4 SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 32 of 33

3. Blood stained concrete pieces - PW-13 Ex.P5.

4. Earth control lifted from scene of PW-13 crime Ex.P6

5. Earth control -Ex.P7 PW-13

6. Blood stained shirt and lower / pant PW-13 of accused Dheeraj - Ex.P8(colly)

7. Cloth of accused Dheeraj - Ex.P9 PW-13

8. Blood stained jeans and brown PW-13 shirt of accused Rakesh - Ex.P10

9. Cloth of accused Rakesh Arora - PW13 Ex.P11 SC No. 19/2021, FIR No. 404/2020 State vs. Rakesh Arora @ Tipu and Ors. 33 of 33